

ANI

THE PROPONENTS
CM Nitish Kumar with his deputy Tejashwi Yadav

closer to the finish line, other opponents of the BJP, including Rahul Gandhi (Congress), M.K. Stalin (DMK) and Akhilesh Yadav (Samajwadi Party) had joined the chorus backing the exercise. Caste enumeration, the next logical step for Mandal politics, had emerged as a tool to counter the BJP's strategy of unifying splintered backward communities under the larger Hindutva umbrella. The stay has put the brakes, albeit temporarily, on the Opposition's pitch.

Having fixed July 3 for the next hearing, the high court on May 9 rejected the state government's fresh plea for an early hearing. The government, according to sources, believes the finer points in the 31-page order have the ring of a final adjudication on the issue, and hence, is weighing legal options. Government sources, however, believe they can move the Supreme Court only after the high court's final verdict.

Over the years, Nitish has been the biggest proponent of a caste count in Bihar. It was at his prodding that the state legislature unanimously passed a resolution in February 2019 and again in February 2020. When the Centre refused consent in July 2021, Nitish led an all-party delegation to Prime Minister Narendra Modi that August to press for the demand. The Bihar CM links the exercise to his welfare plan, saying it would allow his government to expand caste-based affirmative action in meaningful ways. He argues that the caste survey will help identify the most marginalised sections of society, enabling the state to formulate targeted and tailor-made welfare programmes.

Of course, 'welfare' does not fully describe what is at its core a profoundly political measure—count both realpolitik and empowerment politics there. Bihar's push for the survey gathered bigger momentum in August 2022 when Nitish dumped the BJP and joined hands with the RJD and Congress, along with four other parties, to form the government. Caste enumeration holds the potential to provide their anti-Hindutva politics with deeper roots in the social soil. First, it offers the state government a chance to demonstrate its commitment to securing benefits for marginalised social groups in accordance with the idea of proportional distribution. That investment would, logically, lead to an electoral payback. If large caste-based blocs of beneficiaries opt to back their benefactors, CM Nitish and deputy CM Tejashwi Yadav of the RJD can hope to gain an advantage over the BJP.

THE PATNA HC HAS RULED THAT THE STATE DOES NOT HAVE THE LEGISLATIVE COMPETENCE TO CONDUCT A CASTE SURVEY

The timing of the caste count is no less significant. Had the high court not stayed it, the data was expected to have gone public by July—just about nine months before the 2024 Lok Sabha election. And any polarisation around caste would have been crucial for a state that elects 40 members to the Lok Sabha.

"It is not difficult to understand why the JD(U) and RJD, parties that claim to represent the marginalised communities, have been the biggest proponents of a caste census. This will help them strengthen their caste identity politics whereas a party like the BJP, which is often accused of practising religious polarisation and hyper-nationalism and derives electoral strength from the homogeneity of the Hindus, may stand weakened," says Dr Nawal Kishore Choudhary, retired head of the economics department at Patna University.

While the RJD—which relies on the Yadav-Muslim axis—had failed to win a single Lok Sabha seat in the 2019 general election, Nitish's JD(U) had performed much below its expectations in the 2020 assembly polls. Clearly, both leaders need to revive their caste magic in order to optimally realise their electoral potential in Bihar. Nitish has 30 per cent extremely backward castes (EBCs) and 10 per cent Mahadalits as the nucleus of his electoral strength whereas RJD chief Lalu Yadav and his son Tejashwi have the backing of 14 per cent Yadavs and 18 per cent Muslims, respectively. But recent election results have suggested that these leaders have failed to retain the voters of their perceived constituencies in the face of the umbrella politics of Hindutva. This is a situation that applies across India. As the Nitish government prepares its response in the high court, therefore, the outcome of the legal battle would be of interest to multiple players. ■